

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1885

By: May

AS INTRODUCED

An Act relating to juvenile justice; creating the Safeguarding Juvenile Justice Act; requiring the recording of all interactions between juveniles and certain persons; directing the court to assure accurate recordings; requiring trained advocates or social workers to be present during interactions; directing the Supreme Court to establish rules related to certain education and training requirements; requiring judges with juvenile docket responsibilities to attend and complete training; setting number of training hours; directing the Administrative Director of the Courts to develop and administer procedures and rules; directing certain attorneys to attend and complete training; setting number of training hours; allowing judicial districts to develop and administer procedures and rules for training courses; amending 10A O.S. 2021, Section 2-3-105, which relates to grievance procedures; authorizing the investigation of complaints of misconduct and inappropriate behavior; providing for noncodification; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Safeguarding Juvenile Justice Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 2-11-101 of Title 10A, unless
3 there is created a duplication in numbering, reads as follows:

4 A. Upon the effective date of this act, all interactions
5 between a juvenile and judge, attorney, court official, or any other
6 interested party of the juvenile case shall be recorded in order to
7 ensure transparency. The court shall ensure that recordings of
8 interactions are both visual and aural and recorded on film or
9 videotape or by other electronic means. The court shall further
10 assure that the recording equipment is capable of making accurate
11 recordings, the operator of the equipment is competent, the
12 recordings are accurate and have not been altered, and that every
13 voice on the recordings are identified. All parties of the
14 interactions shall be afforded the opportunity to view the
15 recordings.

16 B. A trained advocate or social worker shall be present during
17 all interactions occurring between a juvenile, the judge, attorneys,
18 or court officials.

19 SECTION 3. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 2-11-102 of Title 10A, unless
21 there is created a duplication in numbering, reads as follows:

22 A. Upon the effective date of this act, the Supreme Court shall
23 be required to establish by rule, education and training
24 requirements for judges, associate judges, special judges, referees,

1 and any other court officials who have juvenile docket
2 responsibility on the topics of appropriate and ethical behavior
3 when interacting with juveniles, grooming prevention, and what
4 constitutes grooming behaviors and reporting procedures.

5 1. All judges having juvenile docket responsibility shall
6 attend at least six (6) hours of training in such courses each
7 calendar year relating to the topics described in this subsection.

8 2. The Administrative Director of the Courts shall be
9 responsible for developing and administering procedures and rules
10 for such courses for judicial personnel, including monitoring the
11 attendance of judicial personnel at such training.

12 B. Any district attorney, assistant district attorney, public
13 defender, assistant public defender, attorney employed by or under
14 contract with the Oklahoma Indigent Defense System, court-appointed
15 attorney, or attorney employed by or under contract with a district
16 court whose duties include juvenile docket responsibility shall
17 complete at least three (3) hours of education and training annually
18 in courses relating to the topics described in subsection A of this
19 section. These education and training requirements may be
20 accomplished through a collaborative effort between the judiciary
21 and others with juvenile docket responsibilities.

22 C. Each judicial district shall be responsible for developing
23 and administering procedures and rules for such courses for
24 attorneys identified in subsection B of this section whose duties

1 routinely include juvenile court docket responsibilities. The chief
2 judge of each judicial district, or any designee judge with juvenile
3 docket responsibilities, shall carry out this mandate within one (1)
4 year of the effective date of this act.

5 SECTION 4. AMENDATORY 10A O.S. 2021, Section 2-3-105, is
6 amended to read as follows:

7 Section 2-3-105. A. The Oklahoma Commission on Children and
8 Youth shall administer a grievance process to be utilized by
9 children detained in an adult jail, adult lockup, adult detention or
10 other adult facility. The grievance process shall be available to a
11 child at any time prior to or after adjudication or conviction or
12 during his or her incarceration. Grievances may be filed either by
13 the child or by a person responsible for the juvenile's health or
14 welfare as defined by Section 2-1-103 of Title 10A of the Oklahoma
15 Statutes acting on the child's behalf.

16 B. Grievances shall be directed to the Commission's Office of
17 Juvenile System Oversight for investigation, resolution and referral
18 to the appropriate agency if deemed necessary, including, but not
19 limited to, the State Department of Health.

20 1. The Office of Juvenile System Oversight shall have the
21 authority to investigate complaints, including, but not limited to,
22 the following:

- 23 a. placement,
- 24 b. treatment,

- c. psychological services,
- d. social services,
- e. educational services,
- f. recreation,
- g. abuse, neglect or misconduct,
- h. cleanliness and hygiene, ~~and~~
- i. routine problems with employees, contractors or other incarcerated persons within the facility, and
- j. misconduct or inappropriate behavior by judicial or court personnel.

2. The Office of Juvenile System Oversight shall notify the Office of Juvenile Affairs compliance monitor or designee when a grievance is received. The Office of Juvenile System Oversight shall notify the Department of Human Services when a grievance is received regarding a child in the custody of the Department of Human Services.

C. Each facility in which children are being held shall:

1. Make all grievance policies and procedures available upon request to any member of the public;

2. Make grievance policies and procedures readily accessible to any children in the facility; and

3. Explain all grievance policies and procedures to every child during his or her intake at the facility.

1 D. The Oklahoma Commission on Children and Youth shall
2 promulgate rules for the purposes of administering this section that
3 are consistent with grievance procedures available to children
4 detained in juvenile detention facilities as promulgated by the
5 Office of Juvenile Affairs.

6 E. The provisions of this section shall not apply to any child
7 housed in a Department of Corrections facility or housed under a
8 contract with the Department of Corrections.

9 SECTION 5. This act shall become effective November 1, 2025.
10

11 60-1-11661 GRS 01/11/25
12
13
14
15
16
17
18
19
20
21
22
23
24